

Terms and conditions

VERSION AUGUST 2026 · ENGLISH TRANSLATION OF THE DUTCH "ALGEMENE VOORWAARDEN"

Thank you for wanting to work with me. These terms describe how I work and what we can expect from each other. I have written them to be as readable as possible. Do you have a question? Just send me an email.

In short

- I work on the basis of a quote. Only what the quote says has been agreed.
- You pay 30% at the start and 70% on delivery. Subscriptions are paid in advance.
- After delivery you have 14 days to respond. After that the work counts as approved.
- For six months after delivery I fix defects free of charge. New wishes are a new assignment.
- The copyright in my work stays with me. You get a permanent right to use your website.
- I manage the technology: code, hosting and DNS. You remain the owner of your domain name and your content.
- Moving away? Then you receive your source files and content within 30 days.
- If I process personal data for you, the data processing agreement in Annex 1 applies.

This summary is a starting point. The articles below are decisive.

1 About these terms

- 1.1 These terms apply to all quotes, assignments and agreements between me, Roy Ketelaar (sole proprietorship, KVK 66437067, "I"), and you as the client ("you").
- 1.2 Your own purchasing or other terms do not apply, unless I have accepted them in writing.
- 1.3 Arrangements that deviate from these terms only apply if we have recorded them in writing, for example in the quote. Those specific arrangements then take precedence.
- 1.4 In these terms, "in writing" also means by email.
- 1.5 I send these terms with every quote. They are also available on royketelaar.nl.

2 Quote and agreement

- 2.1 I work on the basis of a quote. It states what I will do, what that includes and what it costs. Only the description in the quote is binding.
- 2.2 A quote is without obligation and valid for 30 days, unless stated otherwise.
- 2.3 The agreement is concluded as soon as I receive your approval. An email is enough. If you ask me to start without a formal approval, the quote also counts as accepted.
- 2.4 Do you want something different from, or more than, what the quote says? Then that is additional work. I tell you in advance that something is additional work and what it costs. Additional work can affect the schedule.
- 2.5 I may have parts of the work carried out by others. I remain your point of contact and remain responsible.

3 How we work together

- 3.1 I carry out the assignment carefully and professionally, as you may expect from a professional. I do my best to meet schedules. A schedule is an estimate, not a strict deadline, unless we expressly agree otherwise.
- 3.2 You deliver everything I need on time: texts, photos, logo, access to accounts and decisions. If that is delayed, the schedule shifts accordingly and I may charge additional costs.
- 3.3 You make sure that you hold the rights to everything you supply, such as texts, photos, video, logo and fonts. If a third party makes a claim against me about this, you indemnify me.
- 3.4 I may suspend my work if you do not keep an agreement, for example if you do not pay an invoice.
- 3.5 I respond to questions as quickly as I can, normally within two working days. I do not work with fixed response times, unless the quote says so.

4 Websites and other work

This article is about everything I make for you.

- 4.1 By "the Work" I mean everything I make for you: websites, web applications, designs, visual identity, texts, documentation, advice and similar work.
- 4.2 I build with modern, widely used technologies and third-party services. Think of open-source frameworks (such as Nuxt and Vue), a content management system (CMS), hosting services (such as Netlify) and version control (such as GitHub). The licences and terms of those third parties apply to those parts. I will point it out if a licence has consequences for you.

- 4.3 I may use stock photos, fonts, icons, components and other third-party materials. Licences that have to be in your name or that cost money, I only take out after your approval. After delivery you are responsible for complying with and renewing those licences.
 - 4.4 I use AI tools for design, code and text. I check and edit the result myself and remain responsible for what I deliver. I handle your confidential information with care when doing so.
 - 4.5 I build accessibly and according to good practice. Whether your website and content meet all legal requirements that apply to your business (such as privacy rules, cookie rules and accessibility requirements) remains your responsibility, unless we agree in the quote that I take care of that for you.
 - 4.6 I give no guarantee that the Work functions in outdated or unusual browsers, devices and software, unless the quote states otherwise.
 - 4.7 I keep the source files for as long as I work for you or can reasonably expect to. After that I may delete them. If you come back later, I may charge costs for retrieving or setting things up again.
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5 Delivery and approval

- 5.1 I deliver the Work, or a phase of it, as soon as, in my professional judgement, it meets the quote. I will let you know.
 - 5.2 You then have 14 days to respond. If you do not respond, the Work counts as approved. If you take the website into use, for example by having it go live or by sharing it, that also counts as approval.
 - 5.3 If you reject something, you tell me specifically what does not match the quote. I fix that as soon as possible, or I explain with reasons why it does match. After that you again have 14 days.
 - 5.4 I do a reasonable number of revision rounds. If either of us no longer finds further revisions useful, each of us may end the rejected part of the assignment. You then pay the hours worked, up to the amount quoted for that part. You may not use the rejected part.
 - 5.5 If I work in phases, you approve each phase separately. You cannot go back on an approved phase later.
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6 Aftercare

- 6.1 For six months after delivery I fix defects free of charge. A defect is something that should have worked according to the quote and does not. Report a defect as quickly and as clearly as possible.

- 6.2 Aftercare does not cover:
- a. new wishes or features; that is a new assignment or phase;
 - b. problems caused by changes that you or someone else made without my approval;
 - c. problems caused by changes at third parties, such as a hosting service, browser, CMS, plug-in or integration;
 - d. content that you have placed or supplied;
 - e. incorrect use.
- 6.3 Work outside aftercare I do at my hourly rate or within a maintenance subscription.
- 6.4 After the aftercare period I am no longer liable for defects in the Work. This does not apply to defects that I knew about, or should have known about, at delivery. For those, a period of twelve months after delivery applies.

7 Hosting, domain and management

I manage the technology. You remain the owner of your domain name and your content.

- 7.1 If hosting is part of our arrangements, I host your website through third-party services (currently Netlify) on accounts in my name, unless we agree otherwise. I manage the source code, the deployment pipeline, the DNS settings and the configuration. That way I can work quickly and safely. The quote states which services and accounts are involved.
- 7.2 You are and remain the holder of your domain name. You register your domain in your own name with a registrar and take care of timely renewal and payment, unless we agree that I take care of that. I may act as technical contact and manage the name servers and DNS records.
- 7.3 You remain the owner of your own content: texts, photos, videos, logo and customer data.
- 7.4 I make an effort to ensure good availability, but I give no uptime guarantee. I depend on third parties. In case of an outage I do what is reasonably possible during office hours to resolve it. Outages and maintenance at third parties are beyond my control and liability.
- 7.5 Third-party costs that fall outside normal use, for example because of exceptionally many visitors or additional services, I pass on after consultation.
- 7.6 I keep the source code and the content of your website in version control. Data that your website itself collects, such as form submissions, is stored with the hosting service. On request I provide an export of it.
- 7.7 Business email is not part of hosting, unless the quote states otherwise.
- 7.8 In case of abuse, illegal content or a serious security risk I may temporarily take your website offline. I will inform you as soon as possible.

8 Maintenance

- 8.1 If you take out a maintenance subscription, the quote states what it includes. Usually: updates of the framework and the dependencies, security updates, monitoring and a number of hours for small changes per period.
- 8.2 New features, redesign and larger changes fall outside maintenance. For those I make a quote. Hours outside the bundle I invoice at my hourly rate.
- 8.3 I may refuse a request if, in my judgement, it threatens the proper functioning, security or accessibility of the website.
- 8.4 If you or a third party changes the code, configuration or hosting without my approval, that is at your own risk. I may refuse maintenance on the changed part or charge additional costs to repair it.
- 8.5 If you change content yourself through the CMS, you are responsible for that content.

9 Intellectual property

The copyright stays with me. You get a permanent right of use.

- 9.1 All intellectual property rights in the Work, including the copyright in the design, the code, the texts and the documentation that I make, remain with me. Rights of third parties, such as open source, stock material and fonts, remain with those third parties.
- 9.2 After full payment you get a right to use the Work: perpetual, non-exclusive and worldwide. You may use the Work for your own business. This includes: showing the Work, changing it and having it maintained by someone else. You may not resell the Work, license it or offer it as your own product.
- 9.3 You may transfer the right of use to a successor of your business. Please let me know if you do.
- 9.4 I may reuse parts of the Work, such as components, code, design solutions and knowledge, for other assignments. In doing so I do not share your confidential information or material that is specifically your identity, such as your logo, texts and photos.
- 9.5 Do you still want a transfer of rights? That is only possible for custom work made exclusively for you, at an additional price and recorded in writing. I do not transfer generic parts.
- 9.6 I may show the Work in my portfolio, on my website and on my social media channels, and name you as a client. I may place a modest mention with a link in the footer of your website. Don't want that? Say so and I will remove it.
- 9.7 You do not remove or change any copyright or other rights notices in the Work.
- 9.8 If you use the Work beyond the right of use, I let you know what is wrong and give you a reasonable period to resolve it. If that does not happen, I may suspend or terminate the right of use and recover my damage.

10 Prices and payment

- 10.1 Prices are in euros and exclusive of VAT. As long as I fall under the Dutch small businesses scheme (kleineondernemersregeling), I do not charge VAT. That is then stated on the quote and the invoice.
- 10.2 For a project we agree a fixed price, unless the quote mentions an hourly rate. You pay 30% at the start and 70% on delivery. For a project in phases this applies per phase. In the quote I can agree other instalments.
- 10.3 Subscriptions, such as hosting and maintenance, I invoice in advance per period, as stated in the quote.
- 10.4 Work on an hourly basis I invoice monthly in arrears.
- 10.5 The payment term is 30 days from the invoice date, unless the invoice states another term. If you do not pay on time, you are in default without further reminder. I may then charge the statutory commercial interest and the extrajudicial collection costs (at least € 40). After a warning I may suspend my work and the hosting for as long as you do not pay.
- 10.6 Do you think an invoice is incorrect? Let me know within the payment term. You may withhold the disputed part until we have sorted it out. The rest you pay as normal.
- 10.7 I may adjust the price of a running subscription once per calendar year. I announce that at least two months in advance. If the increase is higher than the consumer price index (CPI), you may cancel the subscription as of the date on which the new price takes effect.
- 10.8 My records are decisive for what you have purchased and what you owe, unless you show that they are incorrect.

11 Term, cancellation and moving away

- 11.1 A project agreement lasts until the Work has been delivered and approved. Early cancellation is only possible as stated in these terms or by mutual consent.
- 11.2 If you cancel a project early, you pay for the work I have already done plus 50% of the quoted amount for the part that has not yet been delivered.
- 11.3 A subscription starts on the start date in the quote and lasts twelve months. After that it renews for twelve months at a time. You can cancel in writing towards the end of the term, with a notice period of one month.
- 11.4 I may cancel a subscription in the same way. I may also terminate the agreement with immediate effect if, after a reminder, you do not pay, go bankrupt, apply for suspension of payments or close your business.

- 11.5 Does our collaboration end? Then, within 30 days after the end and after you have paid all outstanding invoices, you receive:
- a. the source files of your website;
 - b. an export of your content and of form submissions stored with the hosting service;
 - c. my cooperation in transferring the DNS settings and your domain name.
- Help with moving to another party I do at my hourly rate.
- 11.6 As long as invoices are outstanding, I may suspend the handover. After the handover, or 30 days after the end if you do not want a handover, I may take your website offline and delete the data.
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12 Confidentiality and personal data

- 12.1 We treat information that we receive from each other, and that we know or can understand to be confidential, as confidential. That remains so after the end of our collaboration.
- 12.2 I may use general knowledge and experience that I gain for other assignments, without sharing your confidential information.
- 12.3 If, while carrying out the assignment, I process personal data for you, for example submissions from a contact form or customer data in a CMS, then you are the controller and I am the processor within the meaning of the GDPR. The data processing agreement in Annex 1 applies to that. It forms part of our agreement.
- 12.4 You are responsible for a privacy statement and cookie information on your own website. I am happy to help you with that.
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13 Liability

- 13.1 I am only liable for direct damage caused by an attributable failure. This requires that you first give me written notice of default, with a clear description and a reasonable period to still perform, and that I do not do so.
- 13.2 My liability is limited to the amount you have paid for the assignment concerned. For a subscription that is the fee for that subscription over the last twelve months.
- 13.3 I am not liable for indirect damage, such as consequential damage, lost turnover or profit, loss of data, reputational damage, damage caused by delay, or damage caused by outages at third parties (such as hosting, DNS, email, CMS or integrations).
- 13.4 These limitations do not apply in case of intent or deliberate recklessness on my part.
- 13.5 A claim for damages lapses twelve months after you discovered the damage or could have discovered it.

- 13.6 Force majeure. If I cannot perform because of circumstances beyond my control, such as outages at internet, hosting or other suppliers, illness or incapacity for work, power failure, fire or government measures, I may suspend my obligations. If the force majeure lasts longer than 90 days, we may both terminate the agreement for the part that has not yet been performed, without compensation.
- 13.7 You indemnify me against claims from third parties that relate to your use of the Work, your content or your breach of these terms.
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14 Changing these terms

- 14.1 I may change these terms. For running subscriptions I give at least two months' notice. If you do not agree with a change that clearly worsens your position, you may cancel the subscription as of the effective date of the change.
- 14.2 Changes required by new legislation I may implement immediately.
- 14.3 For a running project, the terms that applied at the start continue to apply.
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15 Finally

- 15.1 Dutch law applies to our agreement.
- 15.2 Do we have a dispute? Then we first try to resolve it together. If that does not work, the court of Noord-Nederland (Northern Netherlands) has jurisdiction, unless mandatory law provides otherwise.
- 15.3 If a provision is void or voidable, the rest continues to apply. We then replace that provision with a valid one that comes as close as possible to its intention.
- 15.4 I may transfer rights and obligations under the agreement to a legal entity in which I continue my business, for example a private limited company (bv). You may only transfer them with my written consent, except as stated in article 9.3.
- 15.5 These terms are also available in Dutch and Frisian. The Dutch text ("Algemene voorwaarden") is the binding version. The English and Frisian versions are translations for your convenience. If they differ, the Dutch text prevails.

Annex 1 — Data processing agreement

BELONGS TO THE TERMS AND CONDITIONS, VERSION AUGUST 2026

This annex applies if I process personal data as processor for you as controller (article 12.3 of the terms). "I" and "you" mean the same here as in the terms.

1 What I process and why

- 1.1 Subject and purpose: hosting, maintaining and supporting your website and the associated services, as agreed in the quote.
- 1.2 Nature of the processing: storing, forwarding, displaying, backing up and deleting data that comes in through your website or is stored in it.
- 1.3 Types of data: data that visitors leave through forms (such as name, email address, telephone number and message), data that you place in the CMS, and technical data such as IP addresses in server logs.
- 1.4 Data subjects: visitors of your website, your customers and prospects, and your staff.
- 1.5 Duration: for as long as I provide these services to you.

2 My obligations

- 2.1 I process the data only on your written instruction and for the purposes above, unless a legal obligation requires otherwise. Our agreement counts as your instruction. If I find an instruction to be in breach of the GDPR, I let you know.
- 2.2 I do not use the data for my own purposes and do not pass it on to third parties, except to sub-processors (article 3 of this annex).
- 2.3 I treat the data confidentially. I only engage people who do the same.
- 2.4 I take appropriate technical and organisational measures to secure the data (article 32 GDPR). Think of encrypted connections (HTTPS), strong passwords and two-factor authentication on accounts, limited access, updates and version control.
- 2.5 I help you, insofar as reasonable, with requests from data subjects (such as access, correction and erasure) and with your obligations regarding security, data breaches and data protection impact assessments. If that takes a lot of time, I may charge for it at my hourly rate.
- 2.6 If I discover a security breach (data breach) that affects your data, I report it without unreasonable delay and at the latest within 48 hours after I discovered it, with the information I have at that time. You decide whether a notification to the Dutch Data Protection Authority (Autoriteit Persoonsgegevens) or to data subjects is required.

- 2.7 On request I make information available with which you can verify that I comply with these arrangements. An audit by you or an independent third party is possible once a year, after consultation, at your expense and without disrupting the services.
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3 Sub-processors

- 3.1 You give me general authorisation to engage sub-processors. At the moment these are:
- Netlify, Inc. (US/EU): hosting, DNS, form submissions and server logs;
 - GitHub, Inc. (US): storage of source code and content in version control.
- 3.2 I inform you in advance about new or changed sub-processors. If you have a reasonable objection, we look for a solution together. If that does not work, you may cancel the part of the service concerned.
- 3.3 I impose the same obligations on sub-processors as in this annex, through their data processing agreement.
- 3.4 Transfer of data outside the European Economic Area only takes place with an adequate level of protection, such as the EU-US Data Privacy Framework or the standard contractual clauses of the European Commission.
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4 End and other matters

- 4.1 When the services end, I deliver the data to you on request (export) and then delete my copies, unless I am legally required to keep them. See also article 11.5 of the terms.
- 4.2 Article 13 of the terms (liability) also applies to this annex.
- 4.3 In case of conflict between this annex and the terms, this annex prevails insofar as it concerns the processing of personal data.
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